

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TORIE BRANCH AND LUIS MANGUAL,

Plaintiff,

Index No.:
Date Purchased:

-against-

CITY OF NEW YORK, POLICE OFFICER BROWN,
BADGE NUMBER 24894, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 13TH PRECINCT,

Plaintiffs designate New York
County as the place of trial.

Basis of venue is place
of occurrence.

Defendants.
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SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 17, 2017



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiffs
TORIE BRANCH & LUIS MANGUAL
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER BROWN, BADGE
NUMBER 24894
13th Precinct
230 East 21st Street
New York, New York 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TORIE BRANCH AND LUIS MANGUAL,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER BROWN,
BADGE NUMBER 24894, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 13TH PRECINCT,

VERIFIED COMPLAINT

Defendants.
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Plaintiffs TORIE BRANCH and LUIS MANGUAL by and through their attorneys,
TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW
YORK, POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT respectfully
alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was, and
still is, a municipal corporation duly organized and existing under and by virtue of the General
Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents
servants and employees operated, maintained and controlled the New York City Police
Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER BROWN,
BADGE NUMBER 24894, was employed by Defendant CITY OF NEW YORK as a police
officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER BROWN,
BADGE NUMBER 24894, acted within the scope of his employment for Defendant CITY OF
NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER BROWN, BADGE NUMBER 24894, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

6. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

9. On November 1, 2016, at approximately 5:40 p.m., Plaintiffs TORIE BRANCH and LUIS MANGUAL were lawfully in front of 127 West 25th Street, New York, New York when they were suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT.

10. That on the aforementioned date, time and place, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT approached Plaintiff TORIE BRANCH and asked him for identification. After Plaintiff TORIE BRANCH complied, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT proceeded to search Plaintiff TORIE BRANCH despite Defendants' knowledge that they lacked reasonable suspicion to do so. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff TORIE

BRANCH's arrest. After the search was completed, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT handcuffed Plaintiff TORIE BRANCH and placed him under arrest for Criminal Sale of a Controlled Substance despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

11. That on the aforementioned date, time and place, without just cause or provocation, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT grabbed Plaintiff LUIS MANGUAL and forcefully pushed him against a nearby wall causing Plaintiff to sustain serious physical injuries. Following the unprovoked and unwarranted assault, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT asked Plaintiff LUIS MANGUAL for identification. After Plaintiff complied, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT proceeded to search Plaintiff LUIS MANGUAL despite Defendants' knowledge that they lacked reasonable suspicion to do so. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff LUIS MANGUAL's arrest. After the search was completed, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT handcuffed Plaintiff LUIS MANGUAL and placed him under arrest for Criminal Sale of a Controlled Substance despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. That Plaintiff TORIE BRANCH was transported to the 13th Precinct (230 East 21st Street, New York, New York 10010) of the New York City Police Department where he was subjected to an illegal strip-search and his arrest was processed. Plaintiff TORIE BRANCH was then transported to Central Booking.

13. That Plaintiff LUIS MANGUAL was transported to the 13th Precinct (230 East 21st

Street, New York, New York 10010) of the New York City Police Department where he was subjected to an illegal strip-search and his arrest was processed. Plaintiff LUIS MANGUAL was then transported to Central Booking, and thereafter taken to Bellevue Hospital Center (462 1st Avenue, New York, New York 10016) where he received treatment for his injuries.

14. That on November 3, 2016, at approximately 10:00 p.m., Plaintiff TORIE BRANCH was released from custody prior to arraignment when, upon information and belief, the District Attorney's Office declined to prosecute his arrest.

15. That on November 2, 2016, at approximately 5:00 a.m., Plaintiff LUIS MANGUAL was released from custody prior to arraignment when, upon information and belief, the District Attorney's Office declined to prosecute his arrest (Arrest No. M2016675050).

16. That on or about December 16, 2016, within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff TORIE BRANCH duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

17. That, pursuant to section 50-h of the General Municipal Law, on April 4, 2017, Plaintiff TORIE BRANCH appeared for, and a municipal hearing was held, in this matter.

18. This action is commenced within one year and ninety days after the cause of action arose.

19. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

20. Plaintiffs TORIE BRANCH and LUIS MANGUAL repeat, reiterate, and reallege each and every paragraph of this complaint and further allege:

21. That at the aforementioned time and place, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT placed Plaintiffs TORIE BRANCH and LUIS MANGUAL under

arrest, despite Defendants' knowledge that they lacked probable cause to do so.

22. That Plaintiffs TORIE BRANCH and LUIS MANGUAL had not committed any offense and Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiffs had committed any offense.

23. That Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiffs TORIE BRANCH and LUIS MANGUAL and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiffs and such actions were committed in bad faith.

24. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiffs TORIE BRANCH and LUIS MANGUAL and such actions were committed in bad faith.

25. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiffs TORIE BRANCH and LUIS MANGUAL were deprived of the rights and immunities secured to them under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subjected to handcuffing and other physical restraints, and strip-searched, without probable cause.

26. As a further result of the above-described acts, Plaintiffs TORIE BRANCH and LUIS MANGUAL were deprived of the rights and immunities secured to them under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

27. Plaintiffs TORIE BRANCH and LUIS MANGUAL repeat, reiterate, and reallege each and every paragraph of this complaint and further allege:

28. That Plaintiff TORIE BRANCH was falsely imprisoned from November 1, 2016 to November 3, 2016, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

29. That Plaintiff LUIS MANGUAL was falsely imprisoned from November 1, 2016 to November 2, 2016, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

30. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, intended to confine Plaintiffs TORIE BRANCH and LUIS MANGUAL, Plaintiffs TORIE BRANCH and LUIS MANGUAL were conscious of the confinement, and Plaintiffs TORIE BRANCH and LUIS MANGUAL did not consent to the confinement.

31. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiffs TORIE BRANCH and LUIS

MANGUAL and damaging the reputation of Plaintiffs TORIE BRANCH and LUIS MANGUAL, and depriving them of their liberty.

32. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiffs TORIE BRANCH and LUIS MANGUAL suffered damage, all of which is in violation of their rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

33. Plaintiffs TORIE BRANCH and LUIS MANGUAL repeat, reiterate, and reallege each and every paragraph of this complaint and further allege:

34. Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

35. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to: a) using force in an unreasonable, unnecessary, and unjustified manner; b) using force with the purpose and intent of maliciously and sadistically punishing individuals in their custody; c) wrongfully detaining minority males based on racial profiling; and d) making unlawful arrests in order to satisfy an arrest quota.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs TORIE BRANCH and LUIS

MANGUAL.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiffs TORIE BRANCH and LUIS MANGUAL as alleged herein.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiffs TORIE BRANCH and LUIS MANGUAL as alleged herein.

39. Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs TORIE BRANCH and LUIS MANGUAL.

40. All of the foregoing acts by Defendants deprived Plaintiffs TORIE BRANCH and LUIS MANGUAL of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

41. Plaintiffs TORIE BRANCH and LUIS MANGUAL repeat, reiterate and reallege each and every allegation contained in this complaint.

42. Each and every individual Defendant Police Officer had an affirmative duty to intervene on behalf of Plaintiffs TORIE BRANCH and LUIS MANGUAL to prevent the violation of their constitutional rights and failed to so intervene despite having had a realistic

opportunity to do so.

43. As a result of the aforementioned conduct of the individual Defendants, the constitutional rights of Plaintiffs TORIE BRANCH and LUIS MANGUAL were violated.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

44. Plaintiff LUIS MANGUAL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

45. The level of force employed by Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT was objectively unreasonable and in violation of Plaintiff LUIS MANGUAL's constitutional rights.

46. As a result of the aforementioned conduct of Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, Plaintiff LUIS MANGUAL was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

47. Plaintiff TORIE BRANCH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT arrested Plaintiff TORIE BRANCH in the absence of probable cause and without a warrant.

49. As a result of the aforesaid conduct by Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, Plaintiff TORIE BRANCH was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated by the defendants in criminal proceedings.

50. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff TORIE BRANCH's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER NEW YORK STATE LAW**

51. Plaintiff TORIE BRANCH repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

52. As a result of the foregoing, Plaintiff TORIE BRANCH was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

53. Plaintiff TORIE BRANCH was conscious of said confinement and did not consent to same.

54. The confinement of Plaintiff TORIE BRANCH was without probable cause and was not otherwise privileged.

55. As a result of the aforementioned conduct, Plaintiff TORIE BRANCH has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION
UNDER NEW YORK STATE LAW**

56. Plaintiff TORIE BRANCH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

57. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity,

sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

58. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION
UNDER NEW YORK STATE LAW**

59. Plaintiff TORIE BRANCH repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

60. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff TORIE BRANCH. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

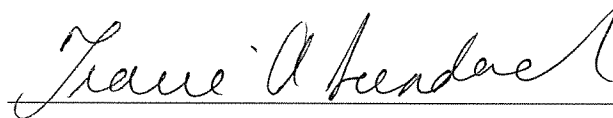
61. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a

conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff TORIE BRANCH.

62. As a result of the foregoing, Plaintiff TORIE BRANCH is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiffs TORIE BRANCH and LUIS MANGUAL demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER BROWN, BADGE NUMBER 24894, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 17, 2017



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiffs
TORIE BRANCH and LUIS MANGUAL
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiffs in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiffs is that Plaintiffs resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiffs.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 17, 2017



TRACIE A. SUNDACK